

TENTATIVE RULINGS

Date: June 1, 2026

#	Case Name	Tentative
1	All Inclusive Insurance Services, LLC vs. EOS Organization, LLC 2023-01310746	Motion for Summary Judgment and/or Adjudication Plaintiffs All Inclusive Insurance Services, LLC and Isidro Miramontes move for summary adjudication against Defendants EOS Organization, LLC and Aaron Green <u><i>Issue 1: Breach of Written Contract (Promissory Note) against EOS Organization, LLC:</i></u> “To prevail on a cause of action for breach of contract, the plaintiff must prove (1) the contract, (2) plaintiff’s performance of the contract or excuse for nonperformance, (3) defendant’s breach, and (4) resulting damage to the plaintiff.” (Richman v. Hartley (2014) 224 Cal.App.4th 1182, 1186.) The first cause of action for breach of written contract is alleged by plaintiff All Inclusive Insurance Services, LLC (“All Inclusive”) against defendant EOS Organization, LLC (“EOS”). As to the existence of a contract, Plaintiffs have submitted a Promissory Note (“Note”) dated December 27, 2022 between All Inclusive and EOS, pursuant to which All Inclusive agreed to loan EOS the principal sum of \$200,000 and EOS agreed to the repayment of \$260,800 if repaid by January 23, 2023, and \$364,800 if not repaid by January 23, 2023 and repaid by February 20, 2023. (Harrison Decl., ¶ 3, Ex. 1.) However, the Note is not signed by EOS. (Harrison Decl., ¶ 3, Ex. 1.) The absence of signatures does not render a contract unenforceable. (Vita Plan. & Landscape Architecture, Inc. v. HKS Architects, Inc. (2015) 240 Cal.App.4th 763, 773.) “A voluntary acceptance of the benefit of a transaction is equivalent to a consent

to all the obligations arising from it, so far as the facts are known, or ought to be known, to the person accepting.” (Civ. Code, § 1589; see also Civ. Code, § 1584 [“acceptance of the consideration offered with a proposal, is an acceptance of the proposal”].)

Although the Note is not signed by EOS, Defendants have submitted Defendants’ contemporaneous writings which show the parties conducted themselves as though they had an agreement. Specifically, on December 23, 2022, EOS’s Chief Solutions Officer, Alex Green, emailed that the “\$260,800 payback” was due “by January 23rd,” and that “[i]f not paid back within 60 days... (February 20th) then the amount due... is \$364,800,” covered by the personal guaranty. (Harrison Decl. ¶ 7, Ex. 4.) Further, in discovery, Defendants admitted receipt of the \$200,000 loan. (Harrison Decl. ¶ 12, Ex. 7, RFA No. 1.) Additionally, on February 23, 2023, Aaron J. Green acknowledged in writing that Defendants had “missed the date,” that the loan was “past due,” and offered a partial payment of \$50,000. (Plaintiffs’ Undisputed Material Facts (“UMF”) 8.) Based on these writings, Plaintiffs have shown the existence of a contract.

As to performance of the contract, Plaintiffs have shown that on December 27, 2022, All Inclusive funded \$200,000 to EOS’s designated account by wire transfer. (UMF 3.)

As to breach, Plaintiffs have shown EOS defaulted on the loan. On February 21, 2023, Plaintiffs provided written notice of default and demanded payment from EOS and Aaron J. Green. (UMF 7.) On February 23, 2023, Green acknowledged in writing that Defendants had “missed the date,” that the loan was “past due,” and offered a partial payment of \$50,000. (UMF 8.) Plaintiffs did not accept the proposed partial payment as resolution of the default, and the default was not cured. (UMF 9.) The loan remains unpaid.

As to damages, Plaintiffs have shown they have been damaged because the loan remains unpaid. (UMF 11.)

All Inclusive has therefore met its initial burden to produce admissible evidence on each element of the breach of contract cause of action. The burden shifts to EOS to show that a triable issue of material fact exists. EOS has not opposed the Motion and not met its shifted burden.

Tentative Ruling: Plaintiff's summary adjudication of the first cause of action is GRANTED.

Issue 2: Breach of Oral Contract (Promissory Note) against EOS Organization, LLC:

"The elements of a breach of oral contract claim are the same as those for a breach of written contract: a contract; its performance or excuse for nonperformance; breach; and damages." (Stockton Mortg., Inc. v. Tope (2014) 233 Cal.App.4th 437, 453.)

The second cause of action for breach of oral contract is alleged by plaintiff All Inclusive against defendant EOS.

Here, Plaintiffs have not submitted any evidence of an oral contract.

Tentative Ruling: Plaintiff's motion for summary adjudication of the second cause of action is DENIED.

Issue 3: Breach of Guaranty against Aaron Green:

The elements to a claim for breach of guaranty are: (1) a guarantor guaranteed payment of indebtedness of a primary obligor, (2) the primary obligor defaulted, (3) notification was given to the guarantor as to the primary obligor's default, (4) there was nonpayment of the debt by the guarantor, and (5) damages. (Torrey Pines Bank v. Superior Court (1989) 216 Cal.App.3d 813, 819.)

Plaintiffs have submitted evidence to show that on December 27, 2022, Aaron J. Green executed a Personal Guaranty guaranteeing payment of "all sums due and owing under" the Promissory Note. (UMF 17-19.) The Promissory Note was not repaid by February 20, 2023, and Plaintiffs thereafter made demand for payment. (UMF 20.) On February 21, 2023, Plaintiffs provided written notice of default and demanded payment from Green under the Guaranty. (UMF 21.) Green failed to pay any sums due under the Guaranty, and the default was not cured. (UMF 24.) As a result, Plaintiffs have been damaged because the loan remains unpaid.

Plaintiffs have therefore met their initial burden to produce admissible evidence on each element of the breach of guaranty cause of action. The burden shifts to Green to show that a triable

issue of material fact exists. Green has not opposed the Motion and not met his shifted burden.

Tentative Ruling: Plaintiff's motion for summary adjudication of the third cause of action is GRANTED.

Issue 4: Damages sought on the Above Claims (\$364,800 or, in the Alternative, not Less Than \$200,000 Principal Plus Prejudgment Interest):

Defendants have asserted usury as an affirmative defense.

It is not plaintiff's initial burden to disprove affirmative defenses and cross-complaints asserted by defendant. (Consumer Cause, Inc. v. SmileCare (2001) 91 Cal.App.4th 454, 468; Oldcastle Precast, Inc. v. Lumbermens Mut. Cas. Co. (2009) 170 Cal.App.4th 554, 565.)

Here, Defendants have not opposed the Motion, however, the \$364,800 due if not repaid by January 23, 2023, on a loan of \$200,000 funded on December 27, 2022, is clearly usurious.

Regardless of the usurious nature of the loan, here Plaintiffs have not sufficiently shown Defendants agreed to pay \$364,800 by January 23, 2023. The only evidence other than the unsigned Note submitted in support of the claim for \$364,800 is an email dated December 23, 2022, where EOS's Chief Solutions Officer,

Alex Green, emailed that the "\$260,800 payback" was due "by January 23rd," and that "[i]f not paid back within 60 days... (February 20th) then the amount due... is \$364,800," covered by the personal guaranty. (Harrison Decl. ¶ 7, Ex. 4.) This email is dated several days before Plaintiffs contend the Note was signed therefore it does not sufficiently show Defendants agreed to repay this amount within 60 days. No other document submitted by Plaintiffs shows Defendants agreed to repay \$364,800.

Tentative Ruling: The Court GRANTS summary adjudication as to damages but limited to \$200,000 principal plus prejudgment interest.

Moving party to give notice.

2	Bank of America N.A. vs. Leitner 2024-01408601	Motion to Set Aside/Vacate Dismissal and Enter Judgment Plaintiff Bank of America, NA moves to Set Aside Dismissal and Enter Judgment Pursuant to the Settlement Agreement. There is no dismissal to set aside. Thus, Plaintiff's request to set aside dismissal is DENIED. Because there was no dismissal, the Court retained jurisdiction. The parties entered into a settlement on August 5, 2024. (RJN Ex. B.) Defendant agreed to make payments of approximately \$1,500 every month. . (RJN Ex. B, ¶ 4.) Plaintiff ceased making monthly payments in August 2025 and has failed to repay the remaining \$21,372.07 due under the settlement agreement. (Sherrill Decl., ¶¶ 4, 7.) Tentative Ruling: Plaintiff's request to enter judgment pursuant to the terms of the Settlement Agreement is GRANTED. Plaintiff to give notice
3	Bear Capital Partners, Inc. vs. Smith 2025-01508678	1. Demurrer to Cross-Complaint 2. Case Management Conference Cross-Complainants attempted to file an amended cross-complaint on May 18, 2026, which was rejected for an error in the caption. The Court finds a short continuance to allow Cross-Complainants to file the amended cross-complaint would serve the interests of justice and conserve judicial resources by potentially eliminating many of the numerous grounds for demurrer asserted. Tentative Ruling: Plaintiffs/Cross-Defendants Bear Capital Partners, Inc. and Ronald L. Meer's Demurrer is CONTINUED to 07/27/26 at 1:45 pm in Department C15. Defendants/Cross-Complainants may file an amended cross-complaint no later than nine (9) court days prior to the continued hearing date. No further opposition is permitted. Case Management Conference is continued to 07/27/26 at 1:45 pm in Department C15. Defendants/Cross-complainants to give notice.